

Mahendra Cecil Bailey v. State of U.P.

Allahabad High Court · Division Bench · 16 March 2021 · Writ-C No. 7028 of 2021 (All.) · WRIT - C No. - 7028 of 2021 · **Writ dismissed; billing dispute relegated to clause 6.5.**

HEADNOTE

A writ petition raising only a dispute about an electricity bill is not entertainable. The consumer must approach the Executive Engineer concerned under clause 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Mahendra Cecil Bailey alias Mahendra Vali filed Writ-C No. 7028 of 2021 in the Allahabad High Court against the State of Uttar Pradesh and three others, raising a dispute concerning an electricity bill. The Division Bench of Sunita Agarwal and Deepak Verma JJ. heard the matter on 16 March 2021. Umair Mahmood appeared for the petitioner; the Chief Standing Counsel and Pranjal Mehrotra appeared for the respondents. The order records no particulars of the bill, the connection, or any prior representation under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute relegated to Executive Engineer

HOLDING

A writ petition raising a dispute regarding an electricity bill cannot be entertained. The appropriate course is to approach the Executive Engineer concerned in accordance with clause 6.5 of the U.P. Electricity Supply Code, 2005. The petition was dismissed. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench refused to entertain a billing-dispute writ and sent the petitioner to the Executive Engineer under clause 6.5, treating that statutory representation as the proper remedy. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The only dispute raised was about the electricity bill, and clause 6.5 was identified as the statutory course before the Executive Engineer. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

The merits of the billing dispute were not examined; the petitioner was directed to the Executive Engineer under clause 6.5. ¶ 1